

Calendar Line 1

Case Name: *Togonidze v. KLA Corporation*
Case No.: 24CV431363

This is a putative class and representative action arising from alleged wage and hour violations. In the operative Third Amended Class and Representative Action Complaint (“Operative Complaint”) against defendant KLA Corporation (“Defendant”), plaintiff Everardo Sumano (“Plaintiff”) alleges failures to pay minimum and overtime wages, provide compliant meal and rest periods, timely pay final wages, provide accurate itemized wage statements, reimburse necessary business expenses, and pay sick pay, as well as related penalties under the Private Attorneys General Act (“PAGA”).

Plaintiff moves for preliminary approval of the settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for preliminary approval and sets a final approval hearing for March 10, 2027 at 1:30 p.m. in Department 5.

I. Legal Standard

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Similar to its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under the Private Attorneys General Act (“PAGA”). (Lab. Code, § 2699, subd. (s)(2).) The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks*

Corp. (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Discussion

A. Provisions of the Settlement

This case has been settled on behalf of the following class:

All non-exempt employees of Defendant in the State of California at any time between February 20, 2020 and June 13, 2025 [the “Class Period”].

(Declaration of Mehrdad Bokhour (“Bokhour Decl.”), Ex. A (“Agreement”), § 1.3.) The settlement includes a subset PAGA group of Aggrieved Employees, defined as “all Class Members employed by Defendant at any time between February 11, 2023 and June 13, 2025 [the “PAGA Period”].” (Id. at §§ 1.2, 1.22.)

Defendant will pay a non-reversionary gross settlement amount of \$4,100,000. The gross settlement amount includes attorney fees of up to 35 percent of the gross settlement amount (\$1,435,000); litigation costs of up to \$30,000; a PAGA allocation of \$205,000 (75 percent of which (\$153,750) will be paid to the LWDA and 25 percent of which (\$51,250) will be paid to Aggrieved Employees as individual PAGA payments); a service payment of up to \$10,000; and settlement administration costs of up to \$12,000. (Motion, pp. 1:13–25, 6:25–7:10.) After these deductions, an estimated net settlement amount of approximately \$2,408,000 will be distributed to the approximately 1,138 Settlement Class Members on a pro rata basis according to workweeks worked, with no claim form required. (Motion, p. 7:6–10.)

The Agreement provides that CPT Group, Inc. (“CPT”) will serve as the neutral entity that will administer the settlement. (Motion, p. 27:1–7.) The Court appoints CPT as the settlement administrator.

The Agreement further provides that funds from settlement checks that remain uncashed 180 days after mailing will be donated to the *cy pres* recipient, Legal Aid at Work, subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (Agreement, § 10.5.) Code of Civil Procedure section 384 mandates that unclaimed or abandoned class members’ funds be given to “nonprofit organizations or foundations to support

projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent.” The Agreement’s designation of Legal Aid at Work as the *cy pres* recipient, subject to section 384, complies with the statute.

In exchange for the settlement, the Participating Class Members agree to release Defendant and related parties from all claims that were or could have been alleged based on the facts stated in the Operative Complaint arising during the Class Period, including claims for unpaid minimum, straight-time, and overtime wages; meal and rest period violations; wage statement and waiting time penalties; unreimbursed business expenses; sick pay; and unfair competition, together with a release under Civil Code section 1542. (Agreement, § 12.1.) Aggrieved Employees will release all PAGA claims for penalties arising during the PAGA Period that were or could have been alleged based on the facts alleged in any version of the complaint and the LWDA letters. (*Id.* at § 12.2.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Fairness of the Settlement

Plaintiff contends that the Agreement meets the standards for preliminary approval. (Motion, pp. 14:17–23:6.) Plaintiff’s counsel states that the parties participated in a full-day mediation with experienced wage-and-hour mediator Daniel Turner, Esq., on February 13, 2025, and, although the matter did not resolve at mediation, accepted the mediator’s proposal on March 13, 2025, resulting in a settlement in principle. (Bokhour Decl., ¶ 17.) Prior to mediation, Defendant produced a sample of class-member time and pay records, its wage and hour policies, and workforce data, which Plaintiff’s counsel analyzed with the assistance of an expert. (*Id.* at ¶¶ 16, 33.)

According to the analysis by Plaintiff’s counsel, the maximum exposure across the wage, penalty, and PAGA claims is approximately \$27.8 million, and the estimated realistic, risk-adjusted value of the case (after applying discounts for the risks of non-certification and

defeat on the merits) is approximately \$7,822,916. (Bokhour Decl., ¶¶ 37–53; Motion, pp. 17:24–22:26.) The gross settlement amount of \$4,100,000 represents approximately 14.7 percent of the estimated maximum exposure and approximately 52 percent of the estimated risk-adjusted exposure, which is within the general range of percentage recoveries that California courts have found to be reasonable.

The Court has reviewed Plaintiff’s written submissions and is satisfied that the settlement is fair and may be approved.

C. Service Award, Fees and Costs

Plaintiff seeks a service award of up to \$10,000 and has provided a declaration describing his participation in this action. The Court is inclined to approve the service award in the amount requested and will issue its determination at the final approval hearing. Class counsel will seek attorney fees of up to 35 percent of the gross settlement amount. The Court notes that this request exceeds the one-third benchmark that California courts commonly approve in wage-and-hour class actions, and the Court will scrutinize the requested percentage—with the assistance of a lodestar cross-check—at the final approval hearing. Prior to the final approval hearing, class counsel shall submit lodestar information (including hourly rates and hours worked) sufficient to support the requested fee, as well as evidence of actual litigation costs incurred and settlement administration costs.

D. Conditional Certification of Class

Plaintiff requests that the class be conditionally certified for purposes of the settlement. California Code of Civil Procedure section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court ...”

Plaintiff states that there are approximately 1,138 class members who can be identified from a review of Defendant’s records. The Court finds that there are common questions regarding whether class members were subjected to unlawful wage and hour policies and practices, and that the proposed class may be conditionally certified for settlement purposes. The Court appoints Everardo Sumano as class representative and appoints Mehrdad Bokhour

of Bokhour Law Group, P.C., Joshua Falakassa of Falakassa Law, P.C., Maggie K. Realin of Cohelan Khoury & Singer, and David R. Markham and Lisa R. Brevard of The Markham Law Firm as class counsel, in each case for purposes of settlement only.

E. Class Notice

California Rules of Court, rule 3.769, subdivision (f), provides, “If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.”

Here, the form of the notice is generally adequate subject to the modification set forth below. It describes the lawsuit, explains the settlement, and states the settlement amounts, including attorney fees and the payment to the named plaintiff, and it informs class members of their estimated settlement share and of the procedures for opting out of or objecting to the settlement.

The following language regarding the final approval hearing shall be added to the notice:

Class members may appear at the final approval hearing in person or remotely using the link for Department 5, and should review the remote appearance instructions beforehand:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

Class members who wish to appear remotely are encouraged to contact class counsel at least three days before the hearing, if possible, so that potential technology or audibility issues can be avoided or minimized.

On the condition that the parties make the above modification to the notice prior to its mailing, the notice is approved.

III. Conclusion

The Court GRANTS the motion for preliminary approval and sets a final approval hearing for March 10, 2027 at 1:30 p.m. in Department 5.

Plaintiff shall prepare the order.

- oo0oo -

Calendar Line 2

Case Name: *Charles v. Advanced Chemical Transport et al.*
(*Advanced Chemical Transport Wage and Hour Cases*)
Case No.: 24CV435308 (JCCP NO. 5345)

This is a coordinated putative class and representative action arising from alleged wage and hour violations. In the operative Consolidated Amended Class and Representative Action Complaint (“Operative Complaint”) against defendants Advanced Chemical Transport, LLC (“ACT”) and IQ Personnel, Inc. (“IQ”) (collectively, “Defendants”), plaintiffs Wayne Herbert Charles and Latrell Williams (“Plaintiffs”) allege failures to pay minimum and overtime wages, provide compliant meal and rest periods, timely pay wages, provide accurate wage statements, maintain payroll records, reimburse business expenses, and provide paid sick leave, as well as related penalties under the Private Attorneys General Act (“PAGA”).

Plaintiffs move for preliminary approval of the settlement, and the motion is unopposed. As discussed below, the record does not permit the independent assessment of reasonableness that California law requires, and several provisions of the settlement agreement and proposed class notice require correction. The Court CONTINUES the motion to November 5, 2026 at 1:30 p.m. in Department 5 and orders the supplemental submission described in Section III.

I. Legal Standard

Whether a settlement is fair and reasonable, whether notice is adequate, whether certification is proper, and whether an attorney fee award is proper “are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) The record must permit “an understanding of the amount that is in controversy and the realistic range of outcomes,” and counsel’s assurance that